



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO

OFFICE OF THE SANGGUNIANG BAYAN

EXPLANATORY NOTE

WHEREAS, the 1987 Philippine Constitution states that the State values the dignity of every human person and guarantees full respect for human rights; promotes the right to health of the people and instill health consciousness among them; and affirms labor as primary social economic force. It shall protect the right workers and promote their welfare;

WHEREAS, Republic Act No. 8504 otherwise known as "An act Promulgating Policies and presenting measures for the Prevention and control of HIV/AIDS in the Philippines was enacted declaring the following policies:

a) The State shall promote public awareness about the causes, modes of transmission, consequences, means of prevention and control of HIV/AIDS through a comprehensive nationwide educational and information campaign organized and conducted by the State. Such campaigns shall promote value formation and employ scientifically proven approaches, focus on the family as a basic social unit, and be carried out in all schools and training centers, workplaces, and communities. This program shall involved individuals and groups, including people living with HIV/AIDS.

b) The State shall extend to every person suspected or known to be infected with HIV/AIDS full protection of his/her human rights and civil liberties. Towards this end:

- i. Compulsory HIV testing shall be considered unlawful unless otherwise provided in R.A. No. 8504;
- ii. The right to privacy of individuals with HIV shall be guaranteed;
- iii. Discrimination, in all its forms and subtleties, against individuals with HIV or persons perceived or suspected of having HIV shall be considered inimical to individual and national interest; and
- iv. Provision of basic health and social services for individuals with HIV shall be assured.

c) The State shall promote utmost safety and universal precautions in practices and procedures that carry the risk of HIV transmission.

d) The State shall positively address and seek to eradicate conditions that aggravate the spread of HIV infection, including but not limited to poverty, gender and inequality, prostitution, marginalization, drug abuse and ignorance.

c) The State shall recognize the potential role of affected individuals in propagating vital information and educational messages about HIV/AIDS and shall utilize their experience to warn the public about the disease.

WHEREAS, the Sanggunian has recognized that effort to localize through the Municipal Aids Council and Barangay Aids Council to make the response to the HIV/AIDS epidemic proactive and effective;

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(On Leave)



OFFICE OF THE SANGGUNIANG BAYAN

BE IT ORDAINED by the Sangguniang Bayan of Agoo, La Union in session assembled, that:

MUNICIPAL ORDINANCE NO. 03 – 2026

Authored by: SBM Mark Anthony T. Refugia

Sponsored by: SBM Priscilla B. Komiya

AN ORDINANCE PROMULGATING POLICIES AND MEASURES FOR THE PREVENTION AND CONTROL OF HIV/AIDS IN THE MUNICIPALITY OF AGOO, LA UNION.

SECTION 1. TITLE - This shall be known as "**An Ordinance Promulgating Policies and Measures for the Prevention and Control of HIV/AIDS in the Municipality of Agoo, La Union.**"

SECTION 2. DECLARATION OF POLICY – Acquired Immune Deficiency Syndrome (AIDS) is a sexually transmitted disease that recognizes no territorial, social, political and economic boundaries for which there is no known cure. The gravity of the AIDS threat demands strong community participation and active involvement of the Municipality of Agoo, La Union, thus, the Municipality shall promote public awareness about the causes, modes of transmission, consequences, means of prevention and control of HIV/AIDS through a comprehensive education and information campaign, organized by the local government down to the barangay level.

The Municipality of Agoo, La Union shall promote value formation and employ scientifically proven approaches. The information and education campaign shall be carried out in schools, training centers, workplaces and communities.

SECTION 3. DEFINITION OF TERMS – As used in the Ordinance, the following terms are defined as follows:

a) **Acquired Immune Deficiency Syndrome (AIDS)** – a condition characterized by a combination of signs and symptoms, caused by HIV contracted from another person and which attacks and weakens body's immune system, making the afflicted individual susceptible to other life-threatening infections.

b) **Human Immunodeficiency Virus (HIV)** – refers to the virus which causes AIDS.

c) **HIV/AIDS Prevention and Control** - refers to the measures aimed at protecting non-infected persons from contracting HIV and minimizing the impact of the condition of persons living with HIV.

d) **HIV positive** – refers to the presence of HIV infection as documented by the presence of HIV or HIV antibodies in the sample being tested.

e) **HIV negative** – denotes the absence of HIV or HIV antibodies upon testing.

f) **HIV testing** – refers to any laboratory procedure done on an individual to determine the presence or absence of HIV infection.

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g) HIV/AIDS monitoring – refers to the documentation and analysis of the number of HIV/AIDS infection and the pattern of its spread.

h) Contact Tracing – refers to the method of finding and counseling the sexual partner(s) who has been diagnosed as having sexually transmitted disease.

i) Sexually Transmitted Infection (STIs) – refers to any disease that can be acquired or passed through sexual contact.

j) Anonymous Testing – refers to HIV testing procedure whereby the individual being tested does not reveal his/her true identity.

k) Compulsory HIV Testing – refers to HIV testing imposed upon a person attended or characterized by the lack of consent use of physical force, intimidation or any forms of compulsion.

l) HIV Transmission – refers to the transfer of HIV from an infected person to an uninfected individual, most commonly through sexual intercourse, blood transfusion, sharing of intravenous needles and during pregnancy.

m) Informed Consent – refers to a voluntary agreement of a person to undergo or be subjected to a procedure based of full information.

n) Medical Confidentiality – refers to the relationship of trust and confidence created or existing between a patient or a person with HIV and his attending physician, consulting medical specialist, nurse, medical technologist and all other health workers or personnel involved in any counseling, testing or professional care of the former, it also applies to any person who, in any official capacity, has acquired such confidential information.

o) Pre-test Counseling – refers to process of providing individual information on the biomedical aspects of HIV/AIDS and emotional support to any psychologist implications of undergoing HIV testing and the test result itself before he/she is subjected to the test.

p) Post-test Counseling – refers to the process of providing risk-education information and emotional support to a person who submitted to HIV testing at the time that the test result is released.

q) Prophylactic - refers to any agent of device use to prevent the transmission of a disease.

r) Voluntary HIV Testing - refers to HIV testing done on an individual who, after having undergone pre-test counselling, willingly submits himself/herself to such test.

s) Information Education and Communication (IEC) Materials – refers to any written and or printed materials for the purpose of information dissemination thereby educating the public.

t) Municipal AIDS Council (MAC) – refers to the central advisory, planning and policy making body for the comprehensive and integrated HIV/AIDS prevention and control program at the municipal level.

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u) **Barangay AIDS Council (BAC)** – refers to the central advisory, planning and policy making body for the comprehensive and integrated HIV/AIDS prevention and control program at the barangay level.

v) **Opportunistic infection** – creating opportunity for microorganism not usually capable of producing disease to become capable. People with HIV are particularly susceptible to such infections.

w) **AB seropositive** – positive blood antibody reaction.

SECTION 4. HIV/AIDS INFORMATION AND EDUCATION CAMPAIGN IN THE COMMUNITIES. The Municipal Health Office, shall conduct an educational and information campaign on HIV/AIDS prevention and control down to the barangay level.

SECTION 5. HIV/AIDS INFORMATION AS A HEALTH SERVICE - HIV/AIDS education and information dissemination shall form part of the delivery of health services by health practitioners, workers and personnel. The knowledge and capabilities of all public health workers shall be enhanced to include skills for proper information dissemination and education on HIV/AIDS. It shall likewise be considered a civic duty of health providers in the private sectors to make available to the public such information necessary to control the spread of HIV/AIDS and to correct common misconceptions about this disease. The training of health workers shall include discussions on HIV-related ethical issues such as confidentiality, informed consent and duty to private treatment.

SECTION 6. SEXUAL ABSTINENCE AND MUTUAL FIDELITY - Sexual abstinence and mutual fidelity shall be emphasized in all HIV/AIDS prevention and control strategies.

SECTION 7. HIV/AIDS GENDER SENSITIVE IEC MATERIALS AND EDUCATION MODULES - Information, education and communications (IEC) materials shall be designed to appropriate to the needs and culture of groups being targeted in the campaign. Literatures on HIV/AIDS shall utilize the local language to encourage and facilitate easy understanding of terms and concepts. Modules on HIV/AIDS prevention and control shall be subjected to review by the Municipal AIDS Council. Proper consultations shall be held among heads, leaders and representatives of respective groups, organizations, institutions and individuals who are targets for application of any course content, scope and methodology.

SECTION 8. HIV/AIDS EDUCATION SCHOOLS – In the Municipality of Agoo, La Union, the Department of Education (DepEd), shall take the lead in information dissemination and popularization on the nature of HIV/AIDS and its prevention, utilizing standardized information provided by the Municipal Health Office in all schools and other indigenous learning system including non-formal system of education. All teachers and instructors of said HIV/AIDS courses shall be required to undergo seminar or training on HIV/AIDS prevention and control.

SECTION 9. EDUCATION IN THE WORKPLACE – Managers, supervisors and employees in workplaces shall be provided with the standardized basic information and instruction on HIV/AIDS which shall include topics on confidentiality in the workplace and attitude towards infected employees and workers.

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SBM REYNALDO V. OLLER

SECTION 10. INFORMATION CAMPAIGN FOR TOURISTS AND TRANSIENTS – Informational AIDS material including signages on the cause, modes of transmission, prevention, and consequences of HIV infection shall be adequately provided at all entry and exit points and possible tourist destinations/places.

SBM ROBERT A. FONTANILLA

SECTION 11. CONSENT AS A REQUISITE FOR HIV TESTING – No compulsory HIV testing shall be allowed in pursuant to Republic Act 8504. However voluntary testing is encouraged to individuals with a high risk for contracting HIV: Provided, that written consent must be first obtained. Such consent shall be obtained from the person concerned if he/she is legal age or from the parents of legal guardian in the case of minor or a mentally incapacitated individual.

SBM ANTHONY P. QUERO

SECTION 12. REFERRAL SYSTEM – There shall be an appropriate referral system established and a proper authority shall likewise be recognized in the municipality. Referrals to testing centers, hospitals, clinics and laboratories offering HIV testing services shall be done by the Municipal Health Officer.

SECTION 13. PRE-TEST AND POST-TEST COUNSELING- Pre-test and post-test counselling shall be conducted to persons who wants to avail of the HIV/AIDS testing services. However, training on counseling must be conducted before a person can do the counseling services. Provided further, the counselor shall meet the standards set by the DOH.

SECTION 14. COMPOSITION OF THE MUNICIPAL AIDS COUNCIL (MAC) – The Municipal AIDS Council shall be composed of the following:

Chairman:	Municipal Mayor
Vice-Chairman:	Municipal Health Officer
Members:	SB Chairman, Committee on Health
	Liga ng mga Barangay President
	Sangguniang Kabataan Federation President
	Department of Health Representative
	Municipal Planning and Development Coordinator
	Municipal Social Welfare and Development Officer
	School District Supervisor
	One (1) active Non-Government Organizations (NGOs)
	presently accredited by the municipality

The Municipal AIDS Council (MAC) may, from time to time, expand or reduce its membership as the need arises.

SECTION 15. POWERS AND FUNCTIONS – For the attainment of the aforesaid HIV/AIDS program, the Municipal AIDS Council (MAC) shall be charged and vested with the following powers and functions:

- Recommend to the Sangguniang Bayan the formulation/development of policy, program conceptualization, planning and monitoring towards the prevention and control of HIV/AIDS.

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SBM ERWIN B. CASTRO

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- b) Recommend to the Sangguniang Bayan enactment of an ordinance and resolution that shall assist in the control and prevention including the provision of care and support of people living of HIV/AIDS.
- c) Collaborate in establishing, mobilizing, and strengthening linkages at the local, national, international government agencies and non-government organizations (NGOs) and other stakeholders involved in the HIV/AIDS prevention and control programs.
- d) The Council is the primary Policy-making body and implementation of AIDS-related activities shall be mainstreamed, institutionalized and carried out by the respective mandated agencies.
- e) Monitor in the implementation of this Ordinance and other policies approved and adopted by MAC.
- f) Accredite applications of certain organizations relevant to the HIV/AIDS program.
- g) May Source-out funds to the national, international government agencies and non-government organizations (NGOs) necessary for the implementation of the HIV/AIDS prevention and control program.
- h) Formulate and submit project proposals to the national, international government, agencies and non-government organization (NGOs) necessary for the implementation of the HIV/AIDS program.
- i) Create Volunteer Groups as an arm for the prevention, control, information dissemination and education to the community.
- j) Representations. Members may designate a representative to represent them in their absence.

SECTION 16. SECRETARIAT OF MUNICIPAL AIDS COUNCIL (MAC). The secretariat shall be designated by the Municipal AIDS Council.

SECTION 17. FUNCTIONS OF THE SECRETARIATE OF THE MUNICIPAL AIDS COUNCIL. The secretariat of the Council shall perform the following functions:

- a) Coordinate the activities of the council.
- b) Shall keep all records of the council.
- c) Record minutes during meetings and document other activities of the council.
- d) Serve as the center of communication by receiving and disseminating information from and to the members of the council.
- e) Perform other secretariat functions as may be assigned by the chairman of the council.

SECTION 18. COMPENSATION AND REMUNERATION OF THE SECRETARIAT OF THE COUNCIL. Members and secretariat of the Municipal AIDS Council shall perform their duties as such and shall be entitled to the necessary travelling expenses, allowances or honorarium chargeable against the funds of the Municipal Government depending

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upon the availability of funds, subject to existing accounting and auditing rules and regulations.

SECTION 19. CREATION OF THE BARANGAY AIDS COUNCIL (BAC) COMPOSITION OF THE BARANGAY AIDS COUNCIL. The Barangay AIDS Council shall be composed of the following:

Chairman:	Punong Barangay
Vice-Chairman:	Sangguniang Barangay Chairman, Committee on Health
Members:	Sangguniang Kabataan Chairman
	Public Health Midwife
	School Principal
	Barangay Nutrition Scholar (BNS)
	One (1) Barangay Health Worker (BHW)
	Senior Citizens representative
	Religious Sector Representative
	Business or Private Sector Representative
	NGO Representative

The BAC may, from time to time, expand or reduce its membership as the need arises.

SECTION 20. REPRESENTATIONS. Members may designate a representative to represent them in their absence.

SECTION 21. POWERS AND FUNCTIONS. The Barangay AIDS Council (BAC) shall have the following powers and functions:

- Recommend to the Sangguniang Barangay in the formulation/development of policy, program conceptualization, planning and monitoring towards the prevention and control of HIV/AIDS at the barangay level.
- Recommend to the Sangguniang Barangay enactment of ordinances and resolutions that shall assist in the control and prevention including the provision of care and support to people living with HIV/AIDS at the barangay level.
- Take the lead in undertaking information, education and communication campaign on HIV/AIDS prevention and control program at the barangay level.
- Monitor in the implementation of this ordinance and other policies approved and adopted by MAC/BAC.
- Accredit applications of certain organizations relevant to the HIV/AIDS program at the barangay level.
- Create Volunteer Groups as an arm for the prevention, control, information dissemination and education to the community.

SECTION 22. COMMUNITY-BASED SERVICES. The Municipality in coordination and cooperation with concerned government agencies, non-government organizations,

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person with HIV/AIDS and groups most at risk of HIV infection shall provide community-based HIV/AIDS prevention and care services.

SECTION 24. INTEGRATION OF HIV/AIDS PROGRAM TO THE MUNICIPAL/BARANGAY DEVELOPMENT PLAN. HIV/AIDS program shall be incorporated to the Municipal Development Plan and Barangay Development Plan for the formulation of a comprehensive, integrated and sustainable policy and program particularly but not limited to the prevention, control, information dissemination and education.

SECTION 25. CREATION OF VOLUNTEER GROUPS. Volunteer groups can be created by the MAC/BAC for the prevention, control, information dissemination and education to the community. The volunteer group shall undergo trainings on capacity building, counseling, trainers training, IEC conceptualization. Formulation and dissemination.

SECTION 26. VOLUNTEER NON-GOVERNMENT ORGANIZATIONS (NGOs). Volunteer Non-Government Organizations shall support in the implementation, sourcing-out of funds and providing technical capabilities particularly but not limited to trainings of the Volunteer Groups.

SECTION 27. MONITORING PROGRAM AND REPORTING MECHANISMS. The Municipal AIDS Council (MAC) shall develop a comprehensive HIV/AIDS monitoring program and reporting procedures on the magnitude of and progression of HIV infection in the Municipality.

SECTION 28. CONFIDENTIALITY. All HIV testing and any information gathered shall remain confidential and classified and shall not be used in any way to become basis or restriction for any employment, school attendance, freedom of abode, or travel.

SECTION 29. RESEARCH INVESTIGATIONS. All research investigations related to HIV/AIDS should observe strict adherence to the ethical guidelines set by the Philippine National AIDS Council.

SECTION 30. DISCRIMINATORY ACTS. Discrimination in any form and place of person perceived or suspected with HIV (i.e. employment process, promotion, assignment or termination from work, schools, hospitals, health institution, travel and habilitation) shall be unlawful.

SECTION 31. DIVULGING OF CONFIDENTIAL INFORMATION OF PERSONS WITH HIV/AIDS. Any person who divulges confidential information about the HIV status of a person shall be penalized here under.

SECTION 32. PENALTIES – Any person found guilty of violating the provisions of Section 28, 29, 30, and 31 of this Ordinance shall be penalized in accordance with the following, to wit;

a) First Offense – a fine of Php 1,000.00 and/or an imprisonment of one (1) month, depending upon the discretion of the court.

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b) Second Offense – a fine of Php 2,000.00 and/or an imprisonment of three (3) months, depending upon the discretion of the court.

c) Third Offense – a fine of Php 2,500.00 and/or an imprisonment of six (6) months, depending upon the discretion of the court.

SECTION 33. SEPARABILITY CLAUSE. For any reason, any provision of this ordinance shall be held unconstitutional or not valid by any court of competent jurisdiction, such judgement shall not affect or impair the other provisions or part thereof which shall continue to be in full force and in effect.

SECTION 34. REPEALING AND AMENDATORY CLAUSE – All municipal ordinances, resolutions, rules, and regulations or any part thereof which are in conflict with or inconsistent with the provisions of this ordinance are hereby repealed and/or modified accordingly.

SECTION 35. EFFECTIVITY – This Ordinance shall take effect after compliance with the publication and posting requirements prescribed under Section 59 of the Local Government Code of 1991 (Republic Act No. 7160) and other applicable laws.

ENACTED: This 12th day of January 2026 at Agoo, La Union.


SBM MARK ANTHONY T. REFUGIA

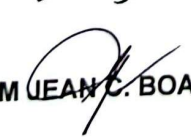

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SBM ROSEPHINE GWYNETH A. CORTEZ
SK Federation President



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I HEREBY CERTIFY THAT THIS IS TRUE AND ACCURATE COPY OF THE
ORDINANCE DULY ENACTED BY THE SANGGUNIAN ON JANUARY 12, 2026.


FRANCISCO A. VERGARA
Secretary to the Sanggunian


ANTONIO A. ESLAO
*Municipal Vice Mayor
Presiding Officer*


FRANK O. SIBUMA
Municipal Mayor
Date Signed: JAN 26 2025